

		harassment so altered working conditions as to make it more difficult to do the job.’ ” (Gov. Code, § 12923(a).) “A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff’s work performance or created an intimidating, hostile, or offensive working environment.” (Id., § 12923(b).) The third cause of action alleges that demurring defendant referred to plaintiff as an “old forgetful senior citizen” in front of several employees during a coworker’s birthday celebration. (Compl. ¶ 43.) Plaintiff alleges that this is one example of a harassing and hostile work environment based on plaintiff’s age and/or other protected statuses. (Ibid.) Demurring defendant concedes that a harassment cause of action may be based on a single incident, such as the claim against him here. The court cannot decide as a matter of law that Defendant’s comment was not an unlawful employment practice. In light of the above, the demurrer is OVERRULED. Defendant to file an answer to the complaint within 20 days. Defendant to give notice.
112	Time Investments LLC v Orleman, 2024-01385610	MOTION TO STRIKE ANSWER - GRANTED OSC RE MONETARY SANCTIONS - DISCHARGED Plaintiff Time Investments, LLC (“Plaintiff”) moves to strike Defendant Marc Orleman’s (“Defendant”) Answer to Plaintiff’s First Amended Complaint and for an order granting monetary sanctions. Defendant failed to respond to Plaintiff’s initial written discovery requests, resulting in a Court order compelling responses, deeming the truth of matters in requests for admission admitted, and imposing monetary sanctions in the amount of \$3,750. (ROA 74.) The underlying motions to compel were unopposed, and Defendant did

not appear at the hearing. (Ibid.) Responses were due on 9/4/25 and sanctions were to be paid by 9/24/25.

As of the filing of this motion on 10/28/25, Defendant had neither provided responses nor paid the monetary sanctions. Defendant did not file an opposition to this motion. The hearing on this motion was continued. Defendant still has not provided discovery responses or paid the monetary sanctions.

The court cannot impose sanctions as punishment; the choice of sanctions should not give the moving party more than it would have gotten had the discovery been responded to. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992; Caryl Richards, Inc. v. Superior Court (1961) 188 Cal.App.2d 300, 303.) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (Doppes, 174 Cal.App.4th at 99.) It is only when a party persists in disobeying the court's orders that the ultimate sanctions of dismissing the action or entering default judgment, etc. are justified. (See Deyo v. Kilbourne (1978) 84 Cal.App.3d 771.)

Terminating sanctions for failure to comply with a court order are allowed only where the failure was willful. (See R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495; Vallbona v. Springer (1996) 43 Cal.App.4th 1525, 1545; Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327.)

Here, despite repeated opportunities to do so, Defendant has completely failed to respond to basic discovery requests. Defendant has failed to pay the monetary sanctions imposed by this court's order. Defendant's failure has continued despite this court's continuance of the hearing on the present motion. Therefore, the court finds that Defendant has engaged in a pattern of conduct that rises to the level which would justify the sanction of having its answer stricken.

		The Court finds that additional monetary sanctions would not compel responses by Defendant. The court will strike Defendant's answer and enter default. Plaintiff to give notice.
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